

Bench:

Mr. Justice Md. Ali Reza

Civil Revision No. 2522 of 2024

Syed Shafiqul Alam

.....petitioner

-Versus-

Hajabun Nesa and others

.....opposite parties

Mr. Probir Neogi, Senior Advocate with

Mr. Muhammad Rafiul Islam,

Mr. Amjad Hossain Murad and

Mr. Surva Chakravorty, Advocates

.....for the petitioner

Mr. Md. Ashrafuddin Khan, Advocate

.....for the opposite parties

Mr. Md. Tofazzal Hosen, Advocate

.....for the opposite parties 9-11

**Heard on: 18.02.2026, 26.02.2026,
03.03.2026, 04.03.2026 and 05.03.2026**

Judgment on: 11.03.2026

In the instant revision Rule was issued on 12.06.2024 calling upon the opposite parties to show cause as to why the impugned judgment and decree dated 26.05.2024 passed by the learned Joint District Judge, 2nd Court, Dinajpur in Other Class Appeal No. 58 of 2018 allowing the appeal by reversing the judgment and decree dated 27.03.2018 passed by the

learned Assistant Judge, Kaharol, Dinajpur in Other Class Suit No. 56 of 2015 (308 of 2009) dismissing the suit should not be set aside and/or such other of further order or orders passed as to this Court may seem fit and proper.

The predecessor of the opposite parties as plaintiff instituted Other Class Suit No. 308 of 2009 on 01.12.2009 in the Court of the Senior Assistant Judge, Dinajpur which was subsequently renumbered as Other Suit No. 56 of 2015 praying for a declaration that the judgment and decree dated 18.09.2005 passed in Other Suit No. 40 of 1996 as described in schedule 'Kha' to the plaint in respect of the suit house described in schedule 'Ka' are false, collusive, inoperative, without lawful basis, fraudulent, illegal and not binding upon the plaintiff. By amendment dated 17.09.2017 plaintiff also prayed for declaration against the deed dated 19.02.2007.

The facts, in brief, are that the non-bangali plaintiff sometime in the year 1961-1962 applied to the Office of the Administrative Officer, Dinajpur Sub-Town Housing Estate for allotment of House Number U/1 situated in Block No. 5 of the said Housing Estate at Dinajpur Sub-Town for permanent residence of himself and his family. Upon approval of the said application by defendant 4 in his capacity as Chairman of the Allotment Committee under the order of defendant 3 the Housing Estate authority issued an allotment letter to the plaintiff by memorandum dated 12.08.1966 for allotment of the house described in schedule 'Ka' to the plaintiff. At that time an amount of Tk. 180 was received from the plaintiff and he was directed to execute an agreement with the Government in respect of the allotted house.

Thereafter on behalf of the then Government of East Pakistan the Administrative Officer, Housing Estate, Dinajpur and the plaintiff executed an agreement in respect of the said house for a term of 99 years which was registered in the Sadar Sub-Registry Office, Dinajpur as Agreement Deed No. 17421 on 14.11.1966 and 05.12.1966 respectively. Subsequently in accordance with the Government circular dated 12.01.1964 possession of the said house was delivered to the plaintiff on 24.11.1966. Thereafter the plaintiff started residing in the suit house with his family while regularly paying the government dues and taxes. Subsequently the plaintiff left the said house under the care of his sister and went to Dhaka in connection with his service. During that period the plaintiff's sister allowed defendant 1 to reside in one room of the suit house without rent. Taking advantage of the simplicity of the

plaintiff's sister and the temporary absence of the plaintiff the said defendant 1 namely Shafiqul Alam in collusion with some dishonest employees of the Housing Estate authority managed to procure an offer letter in respect of the said house on 05.02.1992 without the knowledge of the plaintiff and paid the first installment of the price. However he failed to execute and register the lease deed in accordance with clause 6 of the allotment conditions. Thereafter when the plaintiff returned to Dinajpur from his workplace at Dhaka and came to the said quarter he came to learn through local sources and by making inquiry in the Housing Office that defendant 1 had fraudulently and illegally obtained allotment of the house by way of collusion and deception. Consequently on 05.03.1994 the plaintiff filed an application before defendant 4 seeking restoration of the said house in his favour. Upon such

application defendant 4 by order dated 04.05.1994 directed cancellation of the offer letter issued in the name of defendant No. 1 and forwarded the matter to defendant 2 for approval.

Thereafter by memorandum dated 14.11.1995 defendant 2 directed that the possession of the suit house be handed over to the plaintiff within 15 days after issuing notice to defendant 1.

Accordingly notice was issued to defendant 1. Thereafter the plaintiff having been informed that he would receive further communication from the office at the address mentioned in his application returned to his workplace at Dhaka. It is further stated that at the time of cancellation of the plaintiff's lease the Housing Estate authority, Dinajpur did not serve any notice upon the plaintiff. After a long lapse of time as the plaintiff did not receive any communication or information regarding the suit house he became anxious and on 19.10.2009 went to

the office of defendant 2 at Dinajpur Sub-Town and inquired about delivery of possession of the suit house. At that time defendant 2 informed the plaintiff for the first time that defendant 1 had filed Other Suit 40 of 1996 in the Court of the Senior Assistant Judge and obtained an exparte decree therein.

Being astonished the plaintiff collected an information slip on 22.10.2009 and thereby came to know for the first time about the exparte proceedings of the said suit. Thereafter he inspected the record of the said case on 08.11.2009 and subsequently obtained certified copies of the judgment and decree as well as the written statements of defendants 2 and 4 on 19.11.2009 whereupon the entire matter became clear to the plaintiff.

It appears from the written statements of defendants 2 and 4 that upon the application of the plaintiff the allotment

issued in the name of defendant 1 had already been cancelled.

The defendant 1 however by practising fraud upon the Court in Other Suit 40 of 1996 obtained the impugned judgment and decree by suppressing material facts and by not impleading the plaintiff as a necessary party to the said suit although the plaintiff was a necessary and proper party thereto. Had the plaintiff been impleaded as a party in that suit defendant 1 could never have obtained the impugned judgment and decree.

It is further stated that the father of defendant 1 by practising fraud and deception prepared a false power of attorney in the name of his son who was residing abroad and conducted the said suit on the basis of such forged authority thereby obtaining an ex parte judgment and decree in a wholly illegal manner which is not binding upon the plaintiff. Since the said judgment and decree if allowed to stand would cause

irreparable loss and injury to the plaintiff the plaintiff was constrained to institute the present suit.

The petitioner as defendant 1 entered appearance and contested the suit by filing a written statement denying all the material allegations made in the plaint contending *inter alia* that the suit in its present form and manner is not maintainable in law and the statements made in the plaint are false, fabricated and concocted and the suit is barred by the principles of estoppel, waiver and acquiescence. The case of defendant 1 in substance is that although the plaintiff had taken lease of the house described in schedule 'Ka' to the plaintiff from defendant 2 in the year 1964 the said lease was cancelled in the year 1986 due to the plaintiff's failure to pay the entire installments of the lease money. Though an order for lease of the house described in schedule 'Ka' was once passed

in favour of the plaintiff he never obtained possession of the said house rather the suit house remained in the possession and enjoyment of the plaintiff's sister namely Sokina Khatun.

After cancellation of the allotment in the name of the plaintiff the plaintiff's sister had no lawful authority to continue residing in the said house and she also lacked the financial capacity to obtain a fresh lease upon payment of the required consideration. Consequently when she intended to relinquish possession of the said house she transferred possession thereof in the year 1991 in favour of defendant 1 without any registered deed.

Thereafter defendant 1 submitted a written application to defendant 2 the Administrative Officer for allotment of the said house. Pursuant to the said application defendants 2-4 allotted the said house to defendant 1. After obtaining the

allotment defendant 1 took possession of the suit house and started paying municipal taxes to the Dinajpur Municipality in due course. He also deposited the first installment amounting to Tk. 6,882 on 16.06.1992 through treasury challan and purchased eight non-judicial stamps valued at Tk. 5,555 for the purpose of execution and registration of the lease deed of the said house. Defendant 1 also made repeated requests to defendants 2-4 for registration of the lease deed in his favour. However in the meantime defendant 1 decided to go to Oman in the Middle East for employment. Prior to leaving the country in the middle of November 1992 he executed a power of attorney appointing his father Shamsul Alam as his attorney to take necessary steps for registration of the kabala deed in respect of the suit house in his favour. While pursuing the matter before the offices of defendants 2-4 for registration of

the deed in favour of defendant 1 the said attorney came to learn that the file relating to the suit house had been forwarded to the office of defendant 3 at Dhaka and without the said file it would not be possible to register the deed. Thereafter the father of defendant 1 came to know for the first time on 27.04.1996 from the office of defendant 2 through Memo Number 265 dated 23.04.1996 that the allotment granted in favour of defendant 1 had been cancelled. However prior to cancellation of the said allotment no show cause notice had been served upon defendant 1 and the allotment was cancelled without his knowledge. Accordingly defendant 1 instituted Other Suit 40 of 1996 seeking a declaration that the order cancelling the said allotment was illegal. In the said suit defendants 2 and 3 of the present suit were impleaded as defendants 1 and 2 respectively. Upon receipt of summons the

defendants of that suit entered appearance and defendants 1 and 3 filed written statements whereas defendant 2 did not file any written statement. Although written statements were filed by defendants 1 and 3 they did not contest the suit thereafter. Consequently by judgment and decree dated 18.09.2005 the Court upon consideration of the documents produced by the plaintiff of that suit decreed the same exparte and directed defendant 2 of the present suit to receive the remaining installments for the suit house and to execute and register the lease deed in favour of defendant 1 within 30 days.

As defendant 2 failed to comply with the said direction within the stipulated period defendant 1 on the strength of the said judgment and decree dated 18.09.2005 deposited a sum of Tk. 48,168.00 on 18.07.2006 through Treasury Challan Number 15 towards installments Numbers 2 to 8 in the office

of defendant 2. Thereafter on 19.02.2007 defendant 2 went to the Dinajpur Sub-Registry Office and registered the house described in the schedule in favour of defendant 1. After obtaining registration defendant 1 constructed a beautiful house in accordance with the approved plan upon the suit property and has been residing therein. According to defendant 1 the plaintiff is a complete stranger to the suit property and has neither title nor possession therein. The plaintiff having cast a covetous eye upon the said house constructed by defendant 1 has instituted the present suit with a view to extracting undue advantage from defendant 1. It has further been contended that the plaintiff was always aware of Other Suit 40 of 1996 and the present suit is false and liable to be dismissed.

By filing an additional written statement defendant 1 has further stated that the plaintiff was well aware of the earlier suit being Other Suit 40 of 1996 and for that reason he amended the plaint and attempted to adopt the statements made by the defendants of that suit as his own. The claim of the plaintiff that he was a necessary party in the said suit is wholly incorrect since the cause of action of that suit arose from the order cancelling the allotment in the name of defendant 1. Moreover the Administrative Officer of the Housing Estate, Dinajpur (defendant 1 of that suit) and the District Commissioner, Dinajpur as Chairman of the Allotment Committee (defendant 3 of that suit) did not raise any plea in their written statements that the suit was bad for defect of parties. Therefore the plaintiff of the present suit was not a necessary party in Other Suit 40 of 1996.

On the other hand defendant 3 of the said suit (who is defendant 4 in the present suit) filed a written statement and has contested the present suit. The principal contention of defendant 4 is that the suit land belongs to the Housing Estate, Dinajpur of the Government of the People's Republic of Bangladesh and the house standing thereon was constructed by the Housing Estate Authority. Defendant 1 has been residing in the said house. The Government has an interest in the suit property which remains under the control and possession of the Government. Accordingly the suit filed by the plaintiff being false and vexatious is liable to be dismissed.

The trial Court framed as many as five issues for determination. In support of the plaintiff's case plaintiff Jalal Uddin deposed before the Court as PW-1. Subsequently upon his death on 25.09.2017 his heir namely his son Abdur

Rahman was examined as PW-1(A) who supported the testimony of PW 1 while PW 2 adduced corroborative evidence. On the other hand defendant 1 examined five witnesses and defendant 4 examined DW 5 in support of his case. Both parties also produced documentary evidence before the Court in order to prove their respective claims.

The trial Court upon perusal of the pleadings and hearing the parties and considering both oral and documentary evidence on record dismissed the suit by judgment and decree dated 27.03.2018. Being aggrieved by the said judgment and decree plaintiff preferred Other Appeal 58 of 2018 before the Court of the District Judge, Dinajpur which upon transfer was heard by the Joint District Judge, 2nd Court, Dinajpur who was pleased to allow the appeal by judgment and decree dated 26.05.2024. Feeling aggrieved by the said judgment and

decree of the appellate Court defendant 1 preferred the instant civil revision before this Court and obtained Rule on 12.06.2024.

Learned Senior Advocate Mr. Probir Niyogi appearing on behalf of the petitioner submits that the appellate Court committed error of law resulting in an error in such decree occasioning failure of justice in failing to appreciate that where a decree or document is challenged by a third party it is a settled principle of law that such party must first establish his or her own title before assailing the said decree or document. He further submits that the appellate Court misinterpreted the proviso to Section 42 of the Specific Relief Act and thereby arrived at an erroneous conclusion which is not sustainable in law. He further submits that although the plaintiff allegedly obtained allotment of the suit house in 1966

he did not produce any evidence before the Court to show that he took any step to recover the house until filing the present suit in 2009 and he particularly also failed to prove the alleged application dated 05.03.1994 said to have been filed before defendant 4 seeking restoration of the house. Moreover Exhibit-Gha-1 dated 14.11.1995 clearly indicates that the plaintiff had no possession in the suit property. In the absence of possession the plaintiff is not entitled to any relief in view of Section 42 of the Specific Relief Act read with Section 28 of the Limitation Act. However the appellate Court by misinterpreting the law and failing to properly assess the documentary evidence on record passed the impugned judgment and decree thereby causing miscarriage of justice. He further submits that although according to Exhibit-9 plaintiff claimed to have obtained possession of the suit house

on 24.11.1966 but he nowhere stated in the plaint that at which point of time he left the house and went to Dhaka.

Furthermore even after issuance of Exhibit-Gha in 1995 the plaintiff waited for about thirteen years before making any inquiry regarding the suit house in the year 2009. Therefore the appellate Court by ignoring the bar of Article 142 of the Limitation Act passed the impugned judgment and decree which is wholly contrary to law and has resulted in failure of justice. On the question of notice the learned Advocate submits that considering the acts and conduct and admission of the plaintiff who admittedly had no possession in the suit property failed to comply with Clause 3 of Exhibit-1 which required compliance within fifteen years. The plaintiff failed to maintain the said condition not only within fifteen years but even thereafter. Therefore even if no notice had been served

the interest of the plaintiff as the complaining party would not have been prejudiced. Moreover the plaintiff did not deny the notice during cross-examination and therefore the same is deemed to be an admission within the meaning of Section 58 of the Evidence Act. He further submits that the appellate Court failed to appreciate that in the earlier suit the defendants therein did not raise any plea of defect of parties and unless the plaintiff establishes his own title in the present suit such plea cannot assist the plaintiff in obtaining any relief.

Referring to the pleadings and evidence on record the learned Advocate also submits that in view of Section 115 of the Evidence Act the plaintiff by his own act and conduct has clearly waived his claim and is thus estopped from seeking the relief prayed for in the suit. Finally he submits that the plaintiff has utterly failed to prove the cause of action of the

suit. The alleged lease granted in favour of the plaintiff in 1966 was cancelled in 1982 after fifteen years due to breach of the conditions of allotment. Yet the present suit was filed after about 27 years of the said cancellation or about 59 years after the alleged allotment which clearly shows that the suit has been instituted with an ulterior and *mala fide* motive and is liable to be dismissed. Unfortunately the appellate Court failed to properly appreciate these aspects of the matter and therefore the Rule having merit may be made absolute.

On the other hand the learned Advocate Mr. Ashrafuddin Khan appearing on behalf of the opposite parties submits that the trial Court committed error of law resulting in an error in such decree occasioning failure of justice in dismissing the suit upon misreading and non-consideration of material evidence and also upon misconstruction of documents and as

such the judgment and decree of the trial Court being perverse and misconceived are liable to be set aside. He takes this Court through the entire evidence on record and very candidly submits that the appellate Court being the final Court of fact upon proper assessment and appreciation of both oral and documentary evidence correctly decreed the suit which is immune from interference by this Court in revision and the said judgment having its independent findings is a proper judgment of reversal within the meaning of Order 41 Rule 31 of the Code of Civil Procedure. He very explicitly submits that according to Clause 5 of Exhibit-1 since the notice showing termination of the lease was not served upon the plaintiff the principle of natural justice namely that no person shall be deprived of the opportunity of being heard has been seriously violated which aspect was lawfully and rightly considered by

the appellate Court. He further submits with great emphasis that after paying Tk. 180/- towards the instalment the plaintiff obtained allotment of the suit house on 12.08.1966 and thereafter left his sister in the said house as a licensee and went to Dhaka. The appellate Court treating the possession of the plaintiff's sister as constructive possession of the plaintiff arrived at a lawful and justified conclusion and such a well-reasoned finding of law and fact does not call for interference.

He very clearly submits that the learned appellate Court upon consideration of the pleadings and evidence of the parties as well as the amended plaint dated 17.09.2017 and upon due consideration of the provision of Article 142 of the Limitation Act rightly granted the relief of possession to the plaintiff which is both just and legally sustainable.

Referring to Exhibits-2, 3, 4 and 5 he emphatically submits that the judgment and decree passed in Other Suit 40 of 1996 were obtained by defendant 1 by practicing fraud upon the Court and therefore the present suit is not barred by limitation in any manner whatsoever. He further submits that from Exhibit-Gha-1 dated 14.11.1995 it appears that the present plaintiff was a necessary party in the said earlier suit but he was deliberately and fraudulently not impleaded as a party therein. Had the plaintiff been made a party in the suit defendant 1 could never have obtained the said decree. He also submits that the claim of the defendant is barred by the principle of doctrine of approbate and reprobate and Exhibit-Ta by which defendant claims his entry in the suit house is a forged document and until and unless the thumb impression and signatures of both the parties of Exhibit-Ta having major

discrepancies in all pages relating to the signatures of the attesting witnesses are not identified by somebody the same can never be accepted as genuine document. He further submits that the father of defendant 1 by resorting to fraud and deception created a false power of attorney in the name of his son who was in abroad and thereby managed to obtain the judgment and decree in Other Suit 40 of 1996 completely unlawfully. The learned appellate Court upon careful and judicious analysis of the materials on record arrived at a well-reasoned decision which is not liable to be interfered with in this revisional jurisdiction. The learned Advocate further submits that on the basis of the said fraudulent judgment and decree the allotment deed dated 19.02.2007 executed in favour of defendant 1 marked as Exhibits-Chha and Ja in no way diminished the legal value of the plaintiff's original allotment

deed dated 24.11.1966 marked as Exhibit-1. This is because no 30 days' notice was ever served upon the plaintiff for cancellation of his allotment or eviction from the suit house.

He further submits that although it is admitted that the plaintiff has not been in possession of the suit house since 1977 nevertheless due to fraud and other illegalities committed by defendant 1 the plaintiff's allotment deed still remains valid, subsisting and operative and the appellate Court upon prudent and careful consideration has rightly passed the impugned judgment and decree which ought to be maintained in the interest of justice. Finally referring to Sections 101 to 103 of the Evidence Act the learned Advocate submits that since the plaintiff has been able to prove his case in accordance with law the decree passed by the appellate Court deserves to be

maintained and the Rule having no merit is liable to be discharged.

Learned Advocate Mr. Md. Tofazzal Hosen entered appearance by filing a Vokatnama on behalf of the opposite parties 9-11 who are defendants 2-4 in the suit. Supporting the written statement filed by defendant 4 he submits that the suit property is a house constructed by the Housing Estate authority on land acquired by the Government of the People's Republic of Bangladesh under the Dinajpur Housing Estate project. Defendant 1 has been residing in the said house for a long period. According to him the Government has a direct interest in the suit property and the same remains under the control and possession of the government. Therefore the claim of the plaintiff is false and baseless and not sustainable in law.

I have heard the learned Advocates of both sides and perused the pleadings and evidence on record and the judgments of the Courts below.

The present suit relates to a house situated in Dinajpur Housing Estate described in schedule-‘Ka’ of the plaint.

Plaintiff claims that sometime during the years 1961-1962 he applied to the office of the Administrative Officer of Dinajpur Sub-Town for allotment of House Number U/1 situated in Block Number 5 of the Housing Estate. Upon such application the Housing Estate authority issued an allotment letter in favour of the plaintiff by Memo dated 12.08.1966 for allotment of the house described in schedule ‘Ka’ of the plaint and directed him to execute an agreement upon deposit of an initial amount of Tk. 180/-.

Pursuant thereto two registered deeds being Exhibit-1 were executed in favour of the plaintiff on 14.11.1966 and 05.12.1966 respectively and according to Exhibit-9 possession of the house was allegedly delivered to the plaintiff on 24.11.1966. The plaintiff further states that due to exigency of his service he had to leave for Dhaka and accordingly he allowed his sister to reside in the said house for the purpose of supervision and maintenance. It is further alleged that due to inconvenience of living alone the plaintiff's sister allowed defendant 1 to reside in the said house temporarily without any rent. However it appears from the plaint that the plaintiff has not mentioned the specific date when he left that house leaving his sister therein nor has he stated the date or time when defendant 1 allegedly started residing in the suit house.

The plaintiff further alleges that taking advantage of the said situation defendant 1 managed the authority and procured an offer letter dated 05.02.1992 (Exhibit-Ka) and paid the first installment of the consideration amount. The plaintiff claims that upon coming to know of the said matter he submitted an application on 05.03.1994 praying for cancellation of Exhibit-Ka issued in favour of defendant 1. But significantly plaintiff has failed to produce or prove the said application dated 05.03.1994 before the Court.

From the deposition of the plaintiff as PW 1 it transpires from his cross-examination that since 1977 he has not been in possession of the suit house. Thus according to the admission of the plaintiff himself and the statements made in the plaint it appears that defendant 1 had been residing in the suit house since around the year 1966. Subsequently defendant 4 by letter

dated 04.05.1994 directed defendant 2 to cancel the allotment made in favour of defendant 1. Accordingly defendant 2 by notice dated 14.11.1995 (Exhibit-Gha-1) cancelled the allotment in favour of defendant 1 and directed that possession of the house be delivered to the plaintiff.

It appears from the record that copies of the said notice were addressed to both the plaintiff and defendant 1. However according to the statement made in paragraph 4 of the plaint the plaintiff remained completely inactive for a long period and only on 19.10.2009 after about 14 years he went to the office of defendant 2 and inquired about delivery of possession of the house pursuant to the said notice dated 14.11.1995 Exhibit Gha-1. The explanation given by the plaintiff in this regard appears wholly inconsistent with ordinary human conduct and probabilities. From the admission

of the plaintiff in cross-examination as well as from the statements made in the plaint it becomes abundantly clear that the plaintiff has not been in possession of the suit house since 1977 up to filing of this suit in 2009 that is for about 32 years. Moreover plaintiff has nowhere stated that he ever approached the authority at any point of time for payment of the remaining installments in accordance with the terms and conditions of the allotment agreement.

The plaintiff further claims that on 19.10.2009 he came to learn for the first time from defendant 2 that defendant 1 had obtained an exparte decree in Other Class Suit 40 of 1996. Being astonished thereby the plaintiff consulted a lawyer and on 22.10.2009 obtained an information slip and came to know about the said exparte judgment and decree dated 18.09.2005. However the plaintiff has also failed to produce and prove the

said information slip before the Court which was the most material document to substantiate his alleged cause of action.

The plaintiff further alleges that in the said Other Class Suit 40 of 1996 defendant 1 practised fraud upon the Court by suppressing the plaintiff and thereby obtained an exparte judgment and decree dated 18.09.2005. According to the plaintiff had he been impleaded as a party in the said suit defendant 1 could not have obtained such decree.

On the other hand defendant 1 claims that when the allotment in favour of the plaintiff was cancelled in the year 1986 for non-payment of the stipulated installments the plaintiff's sister subsequently transferred possession of the suit house to defendant 1 by an unregistered document dated 23.10.1991 marked as Exhibit-Ta. Thereafter defendant 1 submitted a written application to defendant 2 seeking

allotment of the said house in his favour and deposited the first installment of Tk. 6,882/- by challan on 16.06.1992. He also purchased eight non-judicial stamps worth Tk. 5,555/- for the purpose of registration of the allotment deed and repeatedly requested defendants 2-4 to complete the necessary formalities. At that stage defendant 1 went abroad to Oman and appointed his father Shamsul Alam as his constituted attorney for the purpose of execution and registration of the allotment deed by executing a registered power of attorney marked as Exhibit-Neo. Subsequently the father of defendant 1 came to learn from the office of defendant 2 by Memo Number 265 dated 23.04.1996 (Exhibit-Gha) that the allotment made in favour of defendant 1 had been cancelled. Challenging the legality of the said Memo Number 265 of 23.04.1996 and praying for a declaration that the same was

illegal, void and not binding defendant 1 instituted Other Class Suit 40 of 1996 on 07.05.1996 making the present defendants 2, 3 and 4 as defendants 1, 2 and 3 in that suit. In the said suit the present defendants 2 and 4 submitted written statements. Significantly in the said written statements no plea of defect of parties or non-joinder of the present plaintiff was ever raised. Upon careful reading of the entire testimony of PW 1 it becomes evident that the plaintiff admittedly did not pay the installments in accordance with the terms and conditions of the allotment granted by the Housing Estate authority. In his cross-examination he further admitted that no notice was served upon him by the Housing Estate authority at the time of cancellation of the lease in his favour while at another stage he stated that he could not say whether the Housing Estate

authority or the Deputy Commissioner had served any such notice upon him.

As already discussed earlier the plaintiff himself admitted that he has not been in possession of the suit house since the year 1977. From the documents marked as Exhibits- 2, 3, 4, 5 and Jha series it appears that although the defendants in that suit initially filed written statements in Other Class Suit 40 of 1996 they subsequently did not contest the suit. Ultimately after about 09(nine) years from the date of the institution of the suit the said suit was decreed exparte by judgment and decree dated 18.09.2005 passed under Order Number 51.

In such circumstances when the present plaintiff admittedly had neither title nor possession over the suit house for a long period it appears quite natural that he was not made

a party in the said suit. Therefore it is difficult to comprehend how defendant 1 could be said to have practised fraud either upon the plaintiff or upon the Court in obtaining the said decree.

Pursuant to the said decree defendant 1 deposited the remaining installments amounting to Tk. 48,168/- on 18.07.2006 (Exhibit-Cha-1). Thereafter although defendant 2 initially declined to execute the allotment deed but subsequently in compliance with the direction of the Court defendant 2 executed and registered the allotment deed in favour of defendant 1 on 19.02.2007 which have been marked as Exhibits-Chha and Ja respectively.

From the statement made in the plaint it appears that defendant 1 has been in possession of the suit house from 1966 or immediate thereafter. Furthermore in the amended

plaint filed by the plaintiff on 17.09.2017 the plaintiff has also sought a decree for eviction of defendant 1 from the suit house. Therefore from the said Exhibits-Chha and Ja as well as from the admission of the plaintiff as made out in the plaint it stands established that defendant 1 presently possesses both title and possession over the suit house.

It appears from the record that the plaintiff was granted an allotment of the disputed house in the year 1966 under a hire-purchase agreement executed by the competent authority of the Housing Estate. Under the terms and conditions of the said allotment the allottee was required to pay the entire premium by installments within a stipulated period of 15 years. From the admitted facts of the case four significant circumstances clearly emerge. Firstly the plaintiff-allottee failed to pay the consideration or installments within the

stipulated period of 15 years as required under the terms of the allotment. Secondly he remained in continuous default for an extraordinarily long period extending to about four decades. Thirdly he admittedly failed to maintain physical possession of the allotted house and in his cross-examination he clearly stated that he had not been in possession of the suit house since the year 1977. Fourthly although the authority did not serve a formal 30-day notice as contemplated under the East Pakistan Government Lands and Buildings (recovery of Possession) Ordinance, 1966 the plaintiff had long before abandoned both possession and performance of the contractual obligations.

The question therefore arises as to whether the allotment stood automatically determined upon breach of the essential condition of payment coupled with abandonment of

possession and whether the absence of a formal notice of cancellation would invalidate such determination. In this regard it is relevant to refer to the principle embodied in the Transfer of Property Act, 1882. Under Section 111(f) of the said Act a lease is determined by implied surrender which occurs when the conduct of the lessee is wholly inconsistent with the continuance of the tenancy. Where a lessee both abandons possession and ceases to perform the essential obligations of the lease for a prolonged period the law presumes that the leasehold interest has been surrendered to the lessor by implication. In the present case the plaintiff not only failed to pay the stipulated installments but also admittedly abandoned possession of the property for several decades. Such conduct is clearly inconsistent with the

continuance of the allotment and amounts to an implied surrender of the leasehold interest.

Furthermore under Section 28 of the Limitation Act, 1908 the right to property itself stands extinguished upon the expiry of the period prescribed for instituting a suit for recovery of possession. Since the plaintiff remained out of possession of the suit house for about 40 years any claim to recover possession has clearly become barred under Article 142 of the Limitation Act and the corresponding right itself stands extinguished by operation of law.

In the present case the plaintiff had already abandoned possession long before and had ceased to perform the essential obligations of the allotment agreement. In such circumstances the requirement of issuing a formal notice becomes a mere redundant formality for the law does not compel the doing of a

useless act. Therefore the allotment in favour of the plaintiff must be held to have lapsed by operation of law. The allotment being conditional in nature non-compliance with its essential terms particularly the failure to pay the stipulated installments within the prescribed period coupled with long abandonment of possession resulted in the extinction of the plaintiff's interest in the property. In the facts and circumstances of the case the mere absence of proof regarding service of a formal notice of cancellation cannot revive or validate an allotment which had already become ineffective by reason of the plaintiff's own default and prolonged inaction.

It is settled principle of law that a suit for declaration or for setting aside a decree must be founded upon a clear and subsisting legal right of the plaintiff. Under Section 42 of the Specific Relief Act, 1877 the plaintiff is required to establish

his legal character or his right as to the property in question before seeking any declaratory relief. In the instant case the plaintiff has attempted to rely upon Exhibit-1 namely the alleged allotment document of the year 1966. However upon careful scrutiny of the evidence on record it appears that the plaintiff has utterly failed to establish his subsisting title or legal interest in the suit property on the basis of the said document. The plaintiff admittedly remained in default in complying with the essential conditions of the allotment and further admitted that he has not been in possession of the suit house since the year 1977. In such circumstances the plaintiff has failed to discharge the primary burden of proof required under the law.

Once the plaintiff fails to establish his title or legal interest in the suit property he remains a stranger to the

property in the eye of law. Consequently he cannot claim any legal grievance in respect of a decree passed in Other Suit 40 of 1996 a proceeding to which he was not a party. It is well settled that a person who has no legal interest in the subject matter cannot be regarded as an aggrieved person by a decree affecting that subject matter and therefore he lacks *locus standi* to challenge the same.

The plaintiff has also attempted to assail the validity of the power of attorney dated 10.01.1996 (Exhibit-Eno) mainly on the ground that the said document does not bear an authentication stamp of the Ministry of Foreign Affairs of Bangladesh. Upon consideration of the relevant law this contention appears to be devoid of any legal substance. It appears that the said power of attorney was executed in the Sultanate of Oman and bears the official seal and signature of

the First Secretary (Labour) of the Bangladesh Embassy at Muscat. Under Section 85 of the Evidence Act, 1872 the Court shall presume that a power of attorney executed before and authenticated by a Notary Public or any Court, Judge, Magistrate or by a representative of the Government including a consular or diplomatic officer was duly executed and authenticated. The expression “shall presume” signifies a mandatory presumption of genuineness unless the contrary is proved. Moreover under the Diplomatic and Consular Officers (Oaths and Fees) Act, 1948 a diplomatic or consular officer exercising functions in a foreign country is legally empowered to perform notarial acts which a Notary Public may perform. Therefore, the attestation made by the First Secretary of the Bangladesh Embassy at Muscat constitutes a valid sovereign act of authentication.

Furthermore the plaintiff has alleged that the said power of attorney is fraudulent. However fraud must be specifically pleaded with full particulars as required under Order 6 Rule 4 of the Code of Civil Procedure, 1908. A vague or general allegation of fraud is not sufficient in law. In the present case the plaintiff has neither pleaded the particulars of the alleged fraud nor adduced any evidence to establish that the signature of defendant 1 or the official seal of the Bangladesh Embassy at Muscat was forged or fabricated. In the absence of such evidence the statutory presumption attached to the power of attorney remains unrebutted.

Another principal question which calls for determination is whether the possession of a licensee can in law be treated as constructive possession of the licensor so as to sustain the plaintiff's claim of possession over the suit property.

Constructive possession is a legal concept whereby possession is attributed by law to a person who though not in actual physical occupation exercises control or dominion over the property through another person who holds the property on his behalf such as a tenant, agent, servant or trustee. In such cases the possession of the occupier is deemed to be the possession of the principal or the owner. However the legal position of a licensee stands on an entirely different footing. A license within the meaning of Section 52 of the Easements Act, 1882 merely confers a personal privilege to do something upon the immovable property of another which would otherwise be unlawful. It does not create any estate or interest in the property nor does it transfer legal possession. The occupation of a licensee remains permissive and revocable at the will of the licensor. It is therefore a settled principle of law that the

possession of a licensee cannot ordinarily be treated as juridical possession on behalf of the licensor in the same manner as the possession of a tenant or agent. Where the licensor himself abandons the property and ceases to exercise control over it for a long period of time the mere permissive occupation of licensee cannot legally sustain a claim of constructive possession.

The learned appellate Court in treating the possession of the plaintiff's sister as constructive possession of the plaintiff failed to appreciate the true legal character of a license and thereby misconstrued the settled principles governing constructive possession. By invoking the term "constructive possession" the appellate Court attempted to create a smokescreen by advancing an apparently weighty proposition which is not permitted in law specially when plaintiff

admittedly abandoned possession since 1977 and filed the suit only in the year 2009.

In view of the discussions made hereinabove and considering the facts and circumstances of the case it appears that the Rule has substance. Accordingly the Rule is made absolute.

The judgment and decree passed by the appellate Court having been found to be erroneous and not in accordance with law are hereby set aside. The judgment and decree passed by the trial Court being lawful and proper are affirmed.

The order of stay passed by this Court stands vacated.

Communicate this judgment to the concerned Court and send down the lower Courts' record.

Md. Ali Reza, J: